

26CV01941 Jophe Jones vs Four Jays Music Company

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Hearing Re Appointment of Receiver

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Tentative Ruling: Jophe Jones vs Four Jays Music Company

Case Number

26CV01941

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Hearing Re Appointment of Receiver

Tentative Ruling

(1) The application of plaintiff Jophe Jones for an order appointing a receiver, with temporary restraining orders in support thereof, or alternatively, for issuance of an order to show cause why the court should not issue an order appointing a receiver, with temporary restraining orders in support thereof, is denied.

(2) As discussed herein, on October 2, 2026, at 10:00 a.m., in this Department, counsel for plaintiff Jophe Jones, attorney Roger N. Behle, Jr., and Foley Bezek Behle & Curtis, LLP, shall appear and show cause why monetary sanctions not to exceed \$1,500 shall not be issued against them pursuant to California Rules of Court, rule 2.30, for violation of California Rules of Court, rule 3.300 by failing to file a Notice of Related Case in this case with respect to Jones v. Four Jays Music Publishing Company, case no. 16CV00271, no later than 15 days after the facts concerning the existence of related cases was known. A written response to this order to show cause shall be filed and served no later than September 21, 2026.

Background:

As alleged in plaintiff's first amended complaint (FAC):

Plaintiff Jophe Jones (Jones) is a 50-percent shareholder of defendant Four Jays Music Company (Four Jays). (FAC, ¶ 7.) From at least 1991 to her death in late December 2023, Jones's sister, Julia Riva (Riva) was also a 50-percent shareholder of Four Jays. (FAC, ¶ 8.)

In mid-March 2025, Wells Fargo Bank (Bank) swept \$93,317.40 from Jones's personal bank account to satisfy debts owed by Four Jays, consisting of \$64,364.16 relating to a Four Jays credit line on which Jones was a co-guarantor, and \$28,953.24 related to a Four Jays credit card opened and used by Riva. (FAC, ¶ 9.) The sweep occurred because Four Jays had failed to pay its credit line and credit card debt for a substantial period of time. (FAC, ¶ 11.) As of December 31, 2025, the amount was listed in Four Jays' financial records as a debt owed to Jones. (FAC, ¶ 12.) Four Jays has not disputed this debt, but has not paid anything. (FAC, ¶ 13.)

In the last ten years, Four Jays has been involved in litigation resulting in two substantial judgments against it and debt to lawyers. (FAC, ¶ 14.) The first judgment is a \$200,000 arbitration judgment, plus post-judgment interest and \$989,352.85 in legal fees, obtained by Jones and Riva's brother, Peter Hacker. (Ibid.) The second judgment is for \$854,436.10, plus interest, in an action in Los Angeles brought by Riva against Jones and Todd Hooker, a former employee of Four Jays and currently one of its directors, in their representative capacities for Four Jays. (FAC, ¶ 15.) The judgment is for indemnity for the cost of defense in this action. (Ibid.) Additionally, Four Jays incurred approximately \$4 million in attorney fees in that action. (FAC, ¶ 16.)

During the past ten years, Jones has not received a shareholder distribution and Jones has not had access to the corporate books. (FAC, ¶ 17.) Since Riva's death, defendant Jean-Paul Riva (JPR) has asserted himself as a shareholder, board member, CEO, and CFO of Four Jays. (FAC, ¶ 18.) JPR claims that he and Edythe Bronston, a former provisional director, elected JPR. (Ibid.) Bronston was appointed a provisional director in Jones v. Four Jays Music Co., case No. 16CV00271, which case was determined on July 26, 2021, at which time Bronston ceased to be a provisional director. (Ibid.) Based on this and other issues, Four Jays has serious problems with its governance. (FAC, ¶ 23.)

On March 25, 2026, Jones filed her original complaint in this action, asserting three causes of action: (1) conversion; (2) common count; and (3) unjust enrichment. These actions all arose out of Jones's claims regarding the money swept from Jones's Bank account.

On July 2, 2026, without any response having been filed, Jones filed the FAC, which asserts five causes of action: (1) conversion; (2) common count; (3) unjust enrichment; (4) fraud; and (5) appointment of a receiver. The new fourth and fifth causes of action arise out of Jones's allegations regarding the governance of Four Jays. Also on July 2, Jones filed an amendment to the complaint identifying "Doe 1" as JPR.

On August 6, 2026, Jones requested, and the court entered, dismissal as to JPR.

On August 7, 2026, Jones filed an ex parte application (Application) for an order appointing a receiver and a temporary restraining order in aid of the receiver or alternatively for issuance of an order to show cause why a receiver should not be appointed and for a temporary restraining order pending disposition of the order to show cause. The Application is opposed by Four Jays.

On August 10, 2026, the hearing on the Application was continued to August 11 because of technical issues.

On August 11, 2026, the court set this hearing on August 21 with a briefing schedule.

The parties filed their briefs, evidence, and objections.

Analysis:

(1) Application for Appointment of a Receiver

The court has reviewed all of the evidence, objections, and arguments of the parties presented in support of, opposition to, and reply to, this Application. For the reasons discussed below, further elaboration of the evidence is not necessary to the disposition of this Application. In making this determination, the court has relied only on admissible evidence.

“A receiver may be appointed, in the manner provided in this chapter, by the court in which an action or proceeding is pending in any case in which the court is empowered by law to appoint a receiver.” (Code Civ. Proc., § 564, subd. (a).)

“A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: [¶] ... [¶]

“(6) Where a corporation is insolvent, or in imminent danger of insolvency, or has forfeited its corporate rights. [¶] ... [¶]

“(9) In all other cases where necessary to preserve the property or rights of any party.” (Code Civ. Proc., § 564, subd. (b)(6), (9).)

“The appointment of a receiver is an equitable remedy, and there is no such thing as an action brought for the mere appointment of a receiver.” (In re Stein (1936) 14 Cal.App.2d 303, 305.) “A receivership is designed to be merely a provisional remedy. It preserves the status quo of property while litigation is pending. ‘[T]he “appointment of a receiver in equity is not a substantive right; rather, it is an ancillary remedy which does not affect the ultimate outcome of the action.” [Citations.]’ [Citation.]” (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 925.) “The appointment of a receiver is an ancillary proceeding concerned with the preservation of the property subject to litigation pending its ultimate disposition pursuant to final judgment.” (Maggiore v. Palo Alto Inn, Inc. (1967) 249 Cal.App.2d 706, 711–712.)

“Because the appointment of a receiver transfers property—or, in this case, a business—‘out of the hands of its owners’ and into the hands of a receiver [citation], the appointment of a receiver is a very ‘drastic,’ ‘harsh,’ and costly remedy that is to be ‘exercised sparingly and with caution.’ [Citations.] Due to the ‘extraordinary’ nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a ‘necessity’ because other, less intrusive remedies are either ‘inadequate or unavailable.’ ” [Citations.]” (Medipro Medical Staffing LLC v. Certified Nursing Registry, Inc. (2021) 60 Cal.App.5th 622, 628.) Nonetheless, “the availability of other remedies does not, in and of itself, preclude the use of a receivership. [Citation.] Rather, a trial court must consider the availability and efficacy of other remedies in determining whether to employ the extraordinary remedy of a receivership.” (City and County of San Francisco v. Daley (1993) 16 Cal.App.4th 734, 745.)

It is an important starting point to identify what is, and what is not, at issue in this action. Jones’s first three causes of action are to recover money that was taken from Jones’s bank account on account of the obligations of Four Jays. The fourth cause of action is for fraud, but is asserted only against a dismissed defendant, JPR, and against unnamed Doe defendants. The fifth cause of action for appointment of a receiver is asserted against Four Jays. The charging allegations of the fifth cause of action are that Jones is a 50 percent owner of Four Jays and that Four Jays is insolvent or in imminent danger of insolvency. (Complaint, ¶¶ 54-57.) Apart from seeking appointment of a receiver, no cause of action seeks any affirmative corporate change, such as dissolution or replacement of directors, or any affirmative corporate action, such as providing access to corporate documents.

Consider the cases cited by Jones in the moving papers: In *California Retail Portfolio Fund GMBH & Co. KG v. Hopkins Real Estate Group* (2011) 193 Cal.App.4th 849, the Court of Appeal affirmed a trial court order authorizing a writ of attachment in connection with an arbitration proceeding for breach of a real estate joint venture agreement. (Id. at p. 852.) The court affirmed, finding, among other things, that there was substantial evidence that an arbitration award might be ineffectual without a writ of attachment because of insolvency or extreme financial distress. (Id. at pp. 852, 855-859.)

In *Snidow v. Hill* (1948) 84 Cal.App.2d 702, the Court of Appeal affirmed the appointment of a receiver in an action to quiet title to property containing a citrus grove that was subject to an installment sale agreement between the parties. (Id. at pp. 702-703.) The sale agreement also provided for the right to all proceeds from the sale of the fruit. (Id. at p. 703.) Evidence was presented that the property was in danger of injury because of failure to care for the grove. (Ibid.) Pointing out that the title to the property was at issue and was in danger of being materially injured, the court found that a receivership was proper. (Id. at pp. 705-707.)

In *Barclays Bank of California v. Superior Court* (1977) 69 Cal.App.3d 593, the court determined, contrary to the trial court, that the trial court had jurisdiction to appoint a receiver as to property subject to a deed of trust based upon a provision in the deed of trust that a receiver may be appointed upon a default. (Id. at p. 602.)

In *California Fruit Growers' Ass'n of Los Angeles v. Superior Court* (1908) 8 Cal.App. 711, the petitioner sought a writ to prohibit an appointed receiver from selling association property. (Id. at pp. 711-712.) The complaint in the trial court sought removal of directors of the association under the Corporations Code for fraudulent practices. (Id. at p. 712.) The court held that the trial court had jurisdiction to appoint a receiver under the allegations of the complaint. (Ibid.)

In *Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, the court affirmed a dismissal of a complaint for breach of fiduciary duty on behalf of corporate creditors against individual directors of a corporation which was insolvent. (Id. at pp. 1037-1038.) This case notes that "[t]here are multiple definitions of insolvency." (Id. at pp. 1042-1043, fn. 23.)

In *City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, in a nuisance action in which judgment had been rendered, the court held the trial court had authority to appoint a receiver to enforce its judgment to abate the nuisance. (Id. at pp. 742-744.)

In *Ex parte Ferguson* (1954) 123 Cal.App.2d 799, the court reviewed a petition for writ of habeas corpus following an adjudication of contempt for disregarding an injunction made in connection with the appointment of a receiver. (Id. at pp. 800, 804.) The court held that a receiver may be appointed in aid of execution of a money judgment. (Ibid.)

In *Tucker v. Fontes* (1945) 70 Cal.App.2d 768, the court also held that a receiver may be appointed in aid of execution of a money judgment. (Id. at pp. 775-776.)

In each of these cases, a receiver was appointed to carry out either the court's judgment or to protect property that was directly the subject of the claim being litigated. There is no judgment entered in this case. There are no claims in the FAC addressed to corporate governance other than the request for a receivership itself. Because a request for a receivership depends upon an underlying cause of action for which the receivership is a provisional remedy, the court here must look to the other causes of action of the FAC to determine the extent to which receivership would be an appropriate provisional remedy. The remaining causes of action are for collection of a \$93,317.40 debt from Four Jays. The relevance of Four Jays' financial condition in this context is solely whether Four Jays would be able to pay a resulting judgment for this debt.

Jones makes no showing as the availability or efficacy of alternative means of pre-judgment collection or securing of the \$93,317.40 debt, such as by writ of attachment. In addition, there is conflicting evidence as to the financial condition of Four Jays as it relates to the ability of Four Jays to pay an eventual judgment on this debt.

After considering all of the admissible evidence and the arguments of the parties, the court determines that it is not persuaded that appointing a receiver is appropriate. The application for appointment of a receiver, or alternatively for issuance of an order to show cause re the application for appointment of a receiver, is denied. For the same reason, the applications for temporary restraining orders in support of a receiver are denied.

(2) Related Cases

This action was filed on March 25, 2026.

In the ex parte application, Jones states, "Plaintiff originally filed this application on February 23, 2026, in Jones v. Four Jays Music Publishing Company, Case No. 16CV00271, a case filed in 2016 seeking the appointment of a provisional director ('Provisional Director Case')." (Application, p. 2.) This case was pending at the time of the filing of this action and at the time of the filing of the FAC. (See Ibid.)

"A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases:

"(1) Involve the same parties and are based on the same or similar claims;

"(2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; [¶] ... [¶]

"(4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges." (Cal. Rules of Court, rule 3.300(a)(1), (2), (4).)

"Whenever a party in a civil action knows or learns that the action or proceeding is related to another action or proceeding pending, dismissed, or disposed of by judgment in any state or federal court in California, the party must serve and file a Notice of Related Case." (Cal. Rules of Court, rule 3.300(b).)

"The Notice of Related Case must be filed in all pending cases listed in the notice and must be served on all parties in those cases." (Cal. Rules of Court, rule 3.300(d).)

"The Notice of Related Case must be served and filed as soon as possible, but no later than 15 days after the facts concerning the existence of related cases become known." (Cal. Rules of Court, rule 3.300(e).)

"The duty under (b)-(e) is a continuing duty that applies when a party files a case with knowledge of a related action or proceeding, and that applies thereafter whenever a party learns of a related action or proceeding." (Cal. Rules of Court, rule 3.300(f).)

It does not appear in the court's docket that any party has filed a Notice of Related Case in violation of California Rules of Court, rule 3.300. As of now, defendants do not seem to have appeared in this action, but have only responded to the ex parte application for appointment of a receiver. (See Opposition, filed Aug. 7, 2026, at p. 1.)

The court will set an order to show cause why the court should not impose sanctions on counsel for plaintiff for failing to file a notice of related cases.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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